

Manpreet Singh Alias Lavi vs State Of Punjab on 6 September, 2023

Author: Pankaj Jain

Bench: Pankaj Jain

CRM-M No.43553 of 2023 (O&M) ss: 2023:PHHC:117318

212 IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M No.43553 of 2023 (O&M)
Date of decision : 06.09.2023

Manpreet Singh@ Lavi ae Petitioner
versus

StateofPunjabo ae Respondent

CORAM : HON'BLE MR.JUSTICE PANKAJ JAIN

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Present :- Mr. Gurpyar Singh, Advocate
for the petitioner.

Mr. Amit Shukla, Asst. A.G., Punjab.

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PANKAJ JAIN, J. (ORAL)

1 This petition has been filed under Section 439 Cr.P.C. for grant of regular bail in case F.I.R. No.14 dated 21.02.2023 registered under Sections 399/402 IPC and Sections 25/54/59 of Arms Act at Police Station Sadar Bakhsiwala, District Patiala.

2 As per the FIR, it has been alleged as under :-

"today, I SI along with ASI Sahib Hajara No. 1920/PTA, ASI Gurpreet Singh No. 703/PTA, ASI Sandeep Singh No. 2872/PTA, ASI Roop Singh No. 2396/PTA, ASI Pargat Kumar No, 1254/PTA, C. Ranjit Singh No. 2282/PTA, Sepoy Surinder singh No. 444/PTA, Sepoy Rupinder Singh No. 1560/PTA and Sepoy Jashjit Singh No. 2333/PTA on Government Vehicle No. PB-11-BY-6918 Make Balero, having driver AST Patvinder Singh No. 1691/PTA and on private car in search of bad & suspected persons were present at Bus Stand Rakhda Nabha, Patiala Road, where special informer met me and shared information that Parvinder Singh alias Ravi son of

Gursewak Singh resident of Jati Majra Police Station Dhuri District Sangrur, Surinder Singh alias Soni son of Ranjit Singh, resident, of Village Jati Majra Police Station Dhuri District Sangrur, Mandeep Singh alias Vicky son Ranjit Singh resident of village CRM-M No.43553 of 2023 (O&M) 2: 2023:PHHC:117318 Daulatpur, Police Station Dhuri District Sangrur, Manpreet Singh alias Lavi son of Major Singh resident of village Baradwala, Police Station Dhuri, District Sangrur and Amandeep Singh alias Golu son of Gurjit Singh resident of village Ruldu Singh Wala, District Sangrur, armed with sharp edged, murderous & illegal weapons, with an intention to commit robbery are planning while sitting in the Fadan (shops) built in the grain market village of Dadhera. To whom I have seen with my own eyes and heard with my ears. Earlier also all these persons armed with sharp and deadly weapons, used to snatch cash etc. They have committed incidents in the area of Sangrur and Nabha. Some of them have been in jail in different countries and are still waiting to commit a major crime. They also have previous cases of theft & robbery registered against them. If a raid is conducted now, they all of them can be apprehended along with sharp edged and deadly weapons. The information is confirm and reliable. In this way the aforesaid persons have fulfilled the provisions of Sections 399, 402 IPC and 25-54-59 of Arms Act. Ruga has been sent to Police Station Bakhshiwala through Jashanjit No. 2333/PTA for registration of case under aforesaid offence against the aforesaid accused. Case be registered and file number be informed. Senior Officers and Control Room be informed."

3 Custody certificate has been filed. The same is taken on record. 4 Learned counsel for the petitioner submits that even if the allegations are taken on their face value, the same at the most would constitute preparation. There is no allegation in the FIR that the petitioner caused any robbery/dacoity. The recovery from the petitioner is stated to be in the form of one iron rod and Rs.30,000/-. Investigation already stands concluded and the challan already stands presented and thus there can not be any apprehension that the petitioner shall tamper with the evidence. The petitioner is behind bars for the last more than 6 months & 11 days. He further relies upon order passed by this Court in CRM-M-30606 of 2023 dated 06.07.2023 whereby co-accused Mandeep Singh @ Vicky and the order dated 24.07.2023 passed in CRM-M-34303-2023 whereby co-accused Amandeep Singh @ Golu stand admitted to regular bail.

CRM-M No.43553 of 2023 (O&M) 333: 2023:PHHC:117318 5 Per contra \earned State counsel, however, opposes the bail plea claiming that the petitioner is a habitual offender and stands booked in 3 more FIRs involving similar offences punishable under Sections 379/411/392 IPC.

6 Faced with this situation counsel for the petitioner relies upon Prabhakar Tewari Vs. State of UP and Anr., 2020 (1) RCR (Criminal) 831 to submit that the involvement of the petitioner in several more cases cannot be a ground to deny bail.

7 I have heard learned counsel for the parties and have gone through the records of the case.

8 Keeping in view the fact that the co-accused has already been granted bail and the law laid down by Apex Court in Prabhakar Tewari's case supra, petitioner is ordered to be released on regular bail on his furnishing bail/surety bonds to the satisfaction of the Ld. Trial Court/Duty Magistrate, concerned.

9 Needless to say that anything observed herein shall not be construed to be an opinion on the merits of the case.

(PANKAJ JAIN) JUDGE 06.09.2023 Pooja sharma-I Whether speaking/reasoned Yes Whether Reportable : No